Chapter-wise Detailed Notes — Supreme Court: composition and jurisdiction

Indian Government & Politics · Unit 4 · Chapter Supreme Court: composition and jurisdiction

Assam University · BA FYUGP / NEP 2020 · Semester 1

Chapter Study Notes

Learning focus

The Supreme Court is India's highest judicial institution. Its judges are appointed under the constitutional framework and hold office subject to constitutionally defined conditions.

1. Its jurisdiction includes original jurisdiction in specified federal disputes, appellate jurisdiction, advisory jurisdiction and enforcement of Fundamental Rights under Article 32.

2. The Court interprets the Constitution and laws, hears appeals from lower courts and may issue writs for enforcement of Fundamental Rights.

3. Judicial independence is supported by institutional safeguards, though debates continue about appointments, access, delay and accountability.

4. The Court's decisions shape constitutional meaning and must be understood in the context of the text, precedent and facts of each case.

Revision checklist

■ Can I define the key concept in my own words?

■ Can I explain its main features and distinguish it from related concepts?

■ Can I support an argument with a relevant example, thinker or constitutional provision?

■ Can I discuss at least one limitation or counterargument?